



CHAPTER cxli.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Chesham (Extension) Cleethorpes (Amendment) Herne Bay Hindhead and District (Extension) Holsworthy Southampton (Extension) Staines Stourbridge Turton and Walton-on-the-Naze. A.D. 1909.
[20th September 1909.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act: 45 & 46 Vict. c. 56.
51 & 52 Vict. c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 1) Act 1909. Short title.

2. The several Orders as amended and set out in the schedule to this Act are hereby confirmed and the same shall from and after the passing and subject to the provisions of this Act have full validity and effect. Orders in schedule confirmed.

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(No. 1) Act, 1909.

A.D. 1909.
For protec-
tion of Hert-
fordshire
County
Council.

3.—(1) Nothing in the Chesham Electric Lighting (Extension) Order 1909 confirmed by this Act shall take away or abridge any power to repair open or break up any road or county bridge along under or across which any pipe wire cable or electric main or apparatus is laid or any other power vested in the Hertfordshire County Council (in this section called "the council") for any of the purposes for which the council is constituted but before commencing any work pursuant to such powers whereby any pipe wire cable or electric main will be interfered with they shall (except in case of emergency in which cases no notice shall be necessary) give the company notice of their intention to commence such work specifying the time at which they will begin to do so such notice to be given three days at least before the commencement of the work and shall always complete such work with all reasonable expedition and cause as little damage or inconvenience to the Company as circumstances admit.

(2) The council shall not be liable to pay to the company any compensation for injury done to any pipes wires cables or electric mains or apparatus by the execution of such works or for loss occasioned thereby or for the reasonable exercise of the powers so vested in them as aforesaid.

(3) The council shall not execute such work so far as it immediately affects any pipe wire cable or electric main except under the superintendence of the company unless the company refuse or neglect to give such superintendence at the time specified in the notice for the commencement of the work or discontinue the same during the progress of the work and the council shall execute such work at their own expense and to the reasonable satisfaction of the company Provided that any additional expense imposed upon the council by reason of the existence of any pipes wires cables or electric mains or apparatus of the company in any road or place shall be borne by the company.

(4) Any difference which may arise between the Company and the Council under this section shall be determined by arbitration.

For protec-
tion of Surrey
County
Council.

4.—(1) Nothing in the Hindhead and District Electric Lighting (Extension) Order 1909 confirmed by this Act shall in any way limit or affect the powers of the Surrey County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the said Order authorised shall be constructed

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or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the said Order. A.D. 1909.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the said Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by some one person to be agreed upon in writing between the county council and the Undertakers or failing agreement by an arbitrator to be appointed on the application of either party by the Board of Trade.

5.—(1) Nothing in the Staines Electric Lighting Order 1909 confirmed by this Act shall in any way limit or affect the powers of the county council of Middlesex (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the said Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the said Order. For protection of county council of Middlesex.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the said Order authorised they shall prior to the

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A.D. 1909. commencement of such works give the Undertakers one month's notice in writing of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

For protec-
tion of
Worcester-
shire County
Council.

6.—(1) Nothing in the Stourbridge Electric Lighting Order 1909 confirmed by this Act shall in any way limit or affect the powers of the Worcestershire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the said Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the said Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the said Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public

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or unreasonably interfere with the works to be carried out by the county council. A.D. 1909.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

7.—(1) Nothing in the Turton Electric Lighting Order 1909 confirmed by this Act shall in any way limit or affect the powers of the Lancashire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the said Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the said Order.

For protec-
tion of Lan-
cashire
County
Council.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the said Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county bridge-master necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

A.D. 1909.

SCHEDULE.

LIST OF ORDERS.

1. CHESHAM (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Chesham Electric Light and Power Company Limited.
 2. CLEETHORPES (AMENDMENT).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Cleethorpes.
 3. HERNE BAY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Herne Bay.
 4. HINDHEAD AND DISTRICT (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Hindhead and District Electric Light Company Limited.
 5. HOLSWORTHY.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Christy Brothers and Company Limited.
 6. SOUTHAMPTON (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Southampton.
 7. STAINES.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Francis Stirling Powell trading as the Egham Electric Lighting Syndicate.
 8. STOURBRIDGE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Stourbridge.
 9. TURTON.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Turton.
 10. WALTON-ON-THE-NAZE.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Coast Development Corporation Limited.
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CHESHAM ELECTRIC LIGHTING (EXTENSION).

A.D. 1909.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Chesham Electric Light and Power Company Limited in respect of an extension of their existing areas of supply to include the Urban District of Great Berkhamstead and portions of the Rural Districts of Berkhamstead and Amersham in the Counties of Hertford and Buckingham.

Chesham.

1. This Order may be cited as the Chesham Electric Lighting (Extension) Order 1909. Short title.

2. The Chesham Electric Lighting Order 1901 (hereinafter called "the principal Order") the Chesham Electric Lighting Order 1907 and this Order may be cited together as the Chesham Electric Lighting Orders 1901 1907 and 1909. Construction.

3. Subject to the provisions of this Order there shall be added to the area of supply for the purposes of the principal Order the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an Assistant Secretary to the Board of Trade. Added area of supply.

4. Subject to the provisions of this Order there shall be added to the list of streets mentioned in the Second Schedule to the principal Order (being streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by that Order) the streets not repairable by the local authority mentioned in the Second Schedule to this Order. Power to break up streets.

5. Subject to the provisions of this Order there shall be added to the list of streets and parts of streets mentioned in the Third Schedule to the principal Order (being streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains) the parts of streets mentioned in the Third Schedule to this Order. Compulsory works.

6. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station on any land acquired by them after the thirty-first day of March One thousand nine hundred and nine unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local As to construction of generating station.

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A.D. 1909. authority owners and lessees of stating any objections they may have thereto This section shall not apply to any station for transforming converting or distributing electrical energy.
Chesham.

Power to re-
fuse to supply
electrical
energy in cer-
tain cases.

7. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Consumers to
give notice to
Undertakers
before re-
moving.

8. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur Notice of this provision shall be endorsed upon every demand note for charges for electrical energy.

Power of pur-
chase by
Great Berk-
hampstead
Urban Dis-
trict Council.

9.—(1) The Great Berkhamstead Urban District Council (hereinafter in this section called "the council") may require the Undertakers to sell and the Undertakers shall sell to the council so much of their undertaking as is within the district of the council (including all lands buildings works materials and plant within the said district suitable to and used by the Undertakers for the purposes of their undertaking within the said district) and the goodwill thereof at the periods and subject to the conditions hereinafter mentioned (that is to say):—

(A) At the expiration of ten years from the commencement of this Order subject to the following conditions' (namely):—

(a) The council shall give to the Undertakers one year's previous notice in writing of their intention to acquire the said part of the undertaking;

(b) The council shall enter into an agreement with the Undertakers to take a supply of energy for their district in bulk from the Undertakers after the transfer until the expiration of thirty years from the commencement of this Order on terms to be agreed upon between the council and the Undertakers or in case of difference to be determined by arbitration;

(c) The council shall pay to the Undertakers the fair market value of the said part of the undertaking as a going concern but without any addition in respect of compulsory purchase:

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(B) At the expiration of thirty years from the commencement of this Order subject to the following conditions (namely):— A.D. 1909.
Chesham.

(a) The council shall give to the Undertakers one year's previous notice in writing of their intention to acquire the said part of the undertaking;

(b) The council shall pay to the Undertakers the fair market value of the said part of the undertaking as a going concern but without any addition in respect of compulsory purchase.

(2) If any question arises as to the price to be paid on any such purchase as aforesaid that question shall be determined by arbitration.

(3) The Board of Trade may determine any other question which may arise in relation to such purchase and may fix the date from which the purchase is to take effect.

(4) On the date on which the purchase takes effect the part of the undertaking purchased including the said lands buildings works materials and plant shall vest in the council freed from any debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity under the principal Order or this Order within the said district shall absolutely cease and determine and shall vest in the council.

(5) Nothing in this section shall affect the power of the council as the local authority to purchase under section 2 of the Electric Lighting Act 1888.

10. The Berkhamstead Rural District Council may purchase so much of the undertaking as is within their district at the like periods and subject to the like conditions as are mentioned and contained in the next preceding section of this Order in the case of a purchase by the Great Berkhamstead Urban District Council and all the provisions of that section shall mutatis mutandis apply accordingly save and except that it shall not be obligatory on the said rural district council to enter into an agreement to take a supply of energy for their district in bulk from the Undertakers Provided however that if they do not enter into such an agreement the sum of 10 per centum shall be added to the price in respect of compulsory purchase in the case of a purchase at the earlier of the said periods. Power of purchase by Berkhamstead Rural District Council.

11. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is three hundred pounds made up as follows (that is to say) one hundred pounds in respect of the urban district of Great Berkhamstead one hundred pounds in respect of the rural district of Berkhamstead and one hundred pounds in respect of the rural district of Amersham. Deposit.

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A.D. 1909.
Chesham.
Application
of principal
Order to
added area.

12. In the application of the provisions of the principal Order to so much of the area of supply as is added by this Order the expression "the commencement of this Order" shall mean the day on which the Act confirming this Order is passed.

SCHEDULES.

FIRST SCHEDULE.

AREA ADDED BY THIS ORDER TO THE AREA OF SUPPLY UNDER THE
PRINCIPAL ORDER.

The urban district of Great Berkhamstead and the parishes of Great Berkhamstead Rural and Northchurch in the rural district of Berkhamstead and the parishes of Amersham Ashley Green Chesham-Bois and Latimer in the rural district of Amersham.

SECOND SCHEDULE.

List of streets not repairable by the local authority which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by the principal Order.

In the urban district of Great Berkhamstead—Clarence Road Three Closes Lane Elm Grove Cemetery Lane Graemesdyke Road Hamilton Road Middle Road Union Square Park View Road Angle Place North Road Prince Edward Street and the roadways on the bridges carrying the public roads over the London and North Western Railway and the Grand Junction Canal.

In the rural district of Berkhamstead—Eddy Street River Terrace Norris Terrace Nelson's Yard William Street Hampton Court Road Back Row Nursery Terrace and the roadways on the bridges carrying the public roads over the London and North Western Railway and the Grand Junction Canal.

In the rural district of Amersham—The roadways on the bridges carrying the public roads over the Great Central Railway and the Metropolitan Railway.

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THIRD SCHEDULE.

A.D. 1909.

Chesham.

Parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the parish of Northchurch in the rural district of Berkhamstead and in the urban district of Great Berkhamstead the main road or High Street from the Old Grey Mare Public House to Berkhamstead Hall.

In the parish of Chesham-Bois in the rural district of Amersham the new road from the boundary of the parish adjoining the urban district of Chesham to the boundary of the parish adjoining the parish of Amersham.

CLEETHORPES ELECTRIC LIGHTING (AMENDMENT).

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Urban District Council of Cleethorpes for the amendment of the Cleethorpes Electric Lighting Order 1900.

1. This Order may be cited as the Cleethorpes Electric Lighting Order 1900 (Amendment) Order 1909 and the Cleethorpes Electric Lighting Order 1900 (hereinafter called "the principal Order") and this Order may be cited together as the Cleethorpes Electric Lighting Orders 1900 and 1909.

2. Nothing contained in section 3 of the schedule to the Electric Lighting (Clauses) Act 1899 (incorporated with the principal Order) shall be construed as preventing the Undertakers from taking a supply of energy in bulk from any company body or person authorised by Parliament to give such a supply.

3. The date from which the periods of two years and eighteen months are to be reckoned for the purposes of section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with the principal Order shall be as follows (namely) as to the said period of two years twelve months before the commencement of this Order and as to the said period of eighteen months the commencement of this Order.

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A.D. 1909.

Cleethorpes.
Power to
break up
streets.

4. Section 6 and the Third Schedule of the principal Order shall be read and have effect as though the following streets and parts of streets had been omitted from such schedule (namely):—

Isaacs Hill
High Street
Alexandra Road
Highcliffe Road
St. Peter's Road
Bancroft Street and
Sea View Street

and as though Pelham Road and Grimsby Road from Pelham Road to Blundell Street had been inserted in lieu thereof.

As to con-
struction of
generating
station.

5. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station on any land acquired by them after the thirty-first day of March one thousand nine hundred and nine unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto. This section shall not apply to any station for transforming converting or distributing electrical energy.

As to supply
of energy
where con-
sumer has
separate
supply.

6. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand or continue to receive from the Undertakers a supply of energy to premises having a separate supply unless he has previously agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers in order to meet the possible maximum demand of such person. The sum to be so paid shall be determined in default of agreement by arbitration.

Power to re-
fuse to supply
electrical
energy in cer-
tain cases.

7. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Consumers to
give notice to
Undertakers
before re-
moving.

8. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice

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the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur. Notice of this provision shall be endorsed upon every demand note for charges for electrical energy.

A.D. 1909.

Gleethorpes.

9.—(1) The Undertakers shall so soon as the next and every subsequent annual statement of accounts of the undertaking under the principal Order has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the urban district a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Undertakers at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882.

Revision of
prices so as
to balance
revenue and
expenditure.

(2) The Undertakers shall on the expiration of the fifth complete financial year after they have commenced to supply electrical energy under the principal Order and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under the principal Order so that so far as is reasonably practicable no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years. Provided nevertheless that—

(a) The prices to be charged shall not exceed the maximum prices which may be charged under the principal Order;

(b) The scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Undertakers.

(3) Nothing in this section contained shall prevent the Undertakers from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

(a) Be subject to revision at the next triennial revision provided for in this section; or

(b) Vary in the same proportion as the prices charged to ordinary consumers;

Provided that the Undertakers shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

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A.D. 1909. (4) There shall not be made against the district rate or any other
Cleethorpes. rate for energy used by the Undertakers for street lighting or any other
purpose a charge at a higher price than that charged to consumers
using energy for similar purposes and for the like hours of supply.

Commence- 10. This Order shall come into force upon the day when the Act
ment of
Order. confirming this Order is passed and that day is in this Order referred
to as "the commencement of this Order."

HERNE BAY ELECTRIC LIGHTING.

Herne Bay. *Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to the Urban District
Council of Herne Bay in respect of the Urban District of
Herne Bay in the County of Kent.*

Short title. 1. This Order may be cited as the Herne Bay Electric Lighting
Order 1909.

Incorporation 2. The provisions contained in the schedule to the Electric Lighting
of Electric
Lighting
(Clauses) Act 1899. (Clauses) Act 1899 (with the exception of sections 83 and 84 of that
schedule) are incorporated with and form part of this Order. Provided
that nothing contained in section 3 of the said schedule shall be
construed as preventing the Undertakers from taking a supply of energy
in bulk from any company body or person authorised by Parliament
to give such a supply.

Undertakers. 3. The Undertakers for the purposes of this Order and within
the meaning of section 2 of the schedule to the Electric Lighting
(Clauses) Act 1899 are the urban district council of Herne Bay.

Area of 4. The area of supply for the purposes of this Order and within
supply. the meaning of section 4 of the schedule to the Electric Lighting
(Clauses) Act 1899 shall be the area which is described in the First
Schedule to this Order and is more particularly delineated on the map
deposited together with this Order at the Board of Trade by the
Undertakers and signed by an assistant secretary to the Board of
Trade.

Power to 5. Subject to the provisions incorporated with this Order the
break up
streets. Undertakers are specially authorised by this Order to break up the
streets and parts of streets not repairable by the local authority which
are mentioned in the Second Schedule to this Order.

Compulsory 6. The streets and parts of streets throughout which the Under-
works. takers are to lay down suitable and sufficient distributing mains for
the purposes of general supply within a period of two years after the

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commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. A.D. 1909.
Herne Bay.

7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto. This section shall not apply to any station for transforming converting or distributing electrical energy. As to construction of generating station.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

9.—(1) The Undertakers shall so soon as the annual statement of accounts of the undertaking under this Order has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the urban district a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Undertakers at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882. Revision of prices so as to balance revenue and expenditure.

(2) The Undertakers shall on the expiration of the fifth complete financial year after they have commenced to supply electrical energy under this Order and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under this Order so that so far as is reasonably practicable no rate will be required for the purpose of defraying the future expenses of the said undertaking during the next three years. Provided nevertheless that—

(a) The prices to be charged shall not exceed the maximum prices which may be charged under this Order ;

(b) The scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Undertakers.

(3) Nothing in this section contained shall prevent the Undertakers from entering into contracts for periods which may extend beyond the

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. periods at which any revision may take place under the provisions of
Herne Bay. this section on special terms under special circumstances not applicable
to ordinary consumers but each such contract shall provide that the
price to be charged for energy supplied under such contract shall
either—

(a) Be subject to revision at the next triennial revision provided
for in this section ; or

(b) Vary in the same proportion as the prices charged to ordinary
consumers :

Provided that the Undertakers shall not without their consent be
required to accept any price lower than the minimum price mentioned
in such contract.

(4) There shall not be made against the district rate or any other
rate for energy used by the Undertakers for street lighting or any
other purpose a charge at a higher price than that charged to con-
sumers using energy for similar purposes and for the like hours of
supply.

As to supply
of energy
where con-
sumer has
separate
supply.

10. Notwithstanding anything contained in the Electric Lighting
Acts 1882 and 1888 a person shall not be entitled to demand or continue
to receive from the Undertakers a supply of energy to premises having
a separate supply unless he has previously agreed to pay to the
Undertakers such minimum annual sum as will give to the Undertakers
a reasonable return on the capital expenditure and will cover other
standing charges incurred by the Undertakers in order to meet the
possible maximum demand of such person The sum to be so paid
shall be determined in default of agreement by arbitration.

Power to re-
fuse to supply
electrical
energy in cer-
tain cases.

11. The Undertakers may refuse to supply electrical energy to
any person whose payments for the supply of electrical energy are for
the time being in arrear (not being the subject of a bonâ fide dispute)
whether any such payments be due to the Undertakers in respect
of a supply to the premises in respect of which such supply is
demanded or in respect of other premises.

Consumers to
give notice to
Undertakers
before re-
moving.

12. Twenty-four hours' notice in writing shall be given to the
Undertakers by every consumer before he quits any premises supplied
with electrical energy by the Undertakers and in default of such notice
the consumer so quitting shall be liable to pay to the Undertakers
the money accruing due in respect of such supply up to the next usual
period for ascertaining the register of the meter on such premises or
the date from which any subsequent occupier of such premises shall
require the Undertakers to supply electrical energy to such premises
whichever shall first occur Notice of this provision shall be endorsed
upon every demand note for charges for electrical energy.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

13. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

A.D. 1909.

Herne Bay.
Commence-
ment of
Order.

S C H E D U L E S.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Herne Bay as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets and parts of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Albany Drive Alexandria Drive Arkley Road Beaumont Street Beacon Hill Parade Belmont Street Bird's Lane Bognor Drive Bournemouth Avenue Buller's Avenue Carlton Hill Central Avenue Chamberlain Drive Cliff Avenue Clarendon Street Clarendon Square Claremont Street Cliff Sea Grove Clifftown Gardens Crown Hill Road Culverden Road three unnamed streets on the Station Avenue Estate Douglas Road from No. 62 to its junction with Mayfield Road Fernlea Avenue Fitzgerald Avenue Fleetwood Avenue Glen Avenue from "Glenside" to its junction with Grange Road Gordon Road from "Brock Villa" to its termination at Culverden Road Harcourt Drive Hill Top Road Ivanhoe Road Linden Avenue Leighville Drive Mayfield Road Montagu Street Oakdale Road from No. 28 to its junction with Mayfield Road Oxenden Park Oxenden Square Queens Avenue Queensbridge Drive Ridgeway Cliff Sandown Drive Salisbury Drive Selsea Avenue South Cliff Drive Spa Esplanade Spencer Road St. Anne's Drive St. George's Avenue St. Helena Grove St. Louis Grove Stanley Road from Eagland Villas to its termination at Spencer Road Sunnyhill Road The Broadway Thurlow Avenue Tyndale Park from No. 16 to its junction with Mickleburgh Hill Westcliff Drive Westcliff Gardens West Hill Drive York Road road between Beltinge Road and Bird's Corner.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.

Herne Bay.

THIRD SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

High Street from William Street to Brunswick Street William Street from High Street to Marine Parade Mortimer Street from William Street to Richmond Street Brunswick Street from High Street to Marine Parade Dolphin Street Richmond Street from High Street to Marine Parade Beach Street from High Street to termination Market Street Telford Street.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

HINDHEAD AND DISTRICT ELECTRIC LIGHTING . A.D. 1909.
(EXTENSION).

Provisional Order granted by the Board of Trade under the Hindhead and District Electric Lighting Acts 1882 and 1888 to the Hindhead and District Electric Light Company Limited in respect of an extension of their existing area of supply to include portions of the Rural Districts of Farnham Hambledon Alton Petersfield and Midhurst in the Counties of Surrey Southampton and West Sussex.

1. This Order may be cited as the Hindhead and District Electric Lighting (Extension) Order 1909. Short title.

2. The Hindhead and District Electric Lighting Order 1902 (hereinafter called "the principal Order") and this Order may be cited together as the Hindhead Electric Lighting Orders 1902 and 1909. Construction.

3. Nothing contained in section 3 of the schedule to the Electric Lighting (Clauses) Act 1899 (incorporated with the principal Order) shall be construed as preventing the Undertakers from taking a supply of energy in bulk from any company body or person authorised by Parliament to give such a supply. Undertakers may take a supply in bulk.

4. Subject to the provisions of this Order there shall be added to the area of supply for the purposes of the principal Order the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Added area of supply.

5. Subject to the provisions of this Order there shall be added to the list of streets mentioned in the Second Schedule to the principal Order (being streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by that Order) the streets and railway mentioned in the Second Schedule to this Order. Power to break up streets &c.

6.—(1) Subject to the provisions of this Order there shall be added to the list of streets and parts of streets mentioned in the Third Schedule to the principal Order (being streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains) the streets and parts of streets mentioned in Part I. of the Third Schedule to this Order. Compulsory works.

(2) In addition to the obligation imposed upon the Undertakers by the foregoing provisions of this section the Undertakers shall

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. within three years from the commencement of this Order lay down
Hindhead suitable and sufficient distributing mains for the purposes of general
and District. supply throughout the part of street specified in Part II. of the Third
Schedule to this Order.

As to construction of generating station. 7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station on any land acquired by them after the thirty-first day of March one thousand nine hundred and nine unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto This section shall not apply to any station for transforming converting or distributing electrical energy.

As to partial revocation of Order on Undertakers failing to supply energy in Frensham Ward. 8. If the Undertakers shall not at the expiration of five years from the commencement of this Order be giving a supply of energy within that part of the parish of Frensham which is known as the Frensham Ward to the reasonable satisfaction of the local authority the Board of Trade may revoke this Order as to that part of the said parish.

As to supply of energy where consumer has separate supply. 9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 or the Electric Lighting (Clauses) Act 1899 a person shall not be entitled to demand or continue to receive from the Undertakers a supply of energy to premises having a separate supply unless he has agreed to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises The sum to be so paid shall be determined in default of agreement by arbitration.

Power to refuse to supply electrical energy in certain cases. 10. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Consumers to give notice to Undertakers before removing. 11. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur Notice of this provision shall be endorsed upon every demand note for charges for electrical energy.

A.D. 1909.

*Hindhead
and District.*

12. In the application of the principal Order to so much of the area of supply as is added by this Order the expression "the commencement of this Order" shall mean the day on which the Act confirming this Order is passed.

Application
of principal
Order to
added area.

SCHEDULES.

FIRST SCHEDULE.

AREA ADDED BY THIS ORDER TO THE AREA OF SUPPLY UNDER THE PRINCIPAL ORDER.

The portion of the parish of Frensham in the rural district of Farnham in the county of Surrey not included in the area of supply of the company under the principal Order the parish of Headley and the portion of the parish of Grayshott not included in the area of supply of the company under the principal Order (both of which last-mentioned parishes are in the rural district of Alton in the county of Southampton the parish of Headley as constituted at the date of the principal Order having been subsequently divided into the parishes of Grayshott and Headley) the parish of Bramshott in the rural district of Petersfield in the said county of Southampton the parish of Haslemere and so much of the parishes of Thursley and Witley as lie to the south of an imaginary line drawn from the southernmost point of the parish of Elstead due east to the eastern boundary of the parish of Witley in the rural district of Hambledon in the county of Surrey and the parishes of Fernhurst Linchmere and North Ambersham in the rural district of Midhurst in the administrative county of West Sussex.

SECOND SCHEDULE.

List of streets not repairable by the local authority and railway which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by the principal Order.

(a) STREETS:—

In the parish of Frensham—Road leading from Gong Hill to the Old Frensham Road Middle Hill Road Shortfield Common Pond Tail

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(No. 1) Act, 1909.

A.D. 1909. Road Grange Road Carlisle Road Wellesley Road Sunderland Road
Hindhead Eglinton Road Beacon Hill Road Hindhead Grove Road Hindhead Hill
and District. Road.

In the parish of Headley—Beech Hill Road Stone Hill or Sandy Road Carlton Road Seymour Road Fair View Road Kenley Road Lindon Road.

In the parish of Bramshott—New Town Road road (not named) near Passfield Common leading in south-westerly direction from the Holly-water Bramshott Road road (not named) leading from the Passfield Liphook Road into the Godalming Liphook Road roads over following bridges of the London and South Western Railway (a) Bridge to north-east of Liphook Station and adjacent thereto (b) Bridge near Colyer's Farm about three-quarters of a mile to the north-east of Liphook Station (c) Bridge north of Bridge Farm.

In the parish of Haslemere—Museum Hill College Road Hill Road Courts Hill Road Courts Mount Road Beech Road West Street Popes Mead Road Bridge Road Chestnut Avenue Derby Road Weydown Road Church Hill Road Underwood Road Great Stroatley Road road to Holdfast Farm roads over following bridges of the London and South Western Railway (a) Bridge in Church Lane (b) Bridge in Tanner's Lane.

In the parish of Witley—Road leading from Stroud to South Park including so much thereof as is over the bridge of the London and South Western Railway.

In the parish of Fernhurst—Marley Heights Road Sturt Avenue Camelsdale Road roads on the Fernden Estate.

In the parish of Linchmere—New Road or Sickle Mill Road School Road Heath Road Copse Road roads on the Springhead Farm Estate Marley Road road over bridge of the London and South Western Railway in Hammer Lane near Hammer Copse.

In the parish of North Ambersham—Mill Hollow road leading from Mill Hollow to the east in the direction of Vale Wood Farm roads on the Fernden Estate.

In the parish of Shottermill—Road leading from the main Portsmouth road to Chase Lodge.

(b) RAILWAY :—

In the parish of Linchmere—The level crossing of the London and South Western Railway at Hammer Farm.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

THIRD SCHEDULE.

A.D. 1909.

*Hindhead
and District.*

PART I.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Parish of Frensham—The Tilford Road from Wood Road to Churt Wynd and the Churt Road from the lane to Whitmore Bottom to the Beacon Hill Park Estate.

Parish of Bramshott—The London and Portsmouth road from the boundary of the parish of Shottermill to the Seven Thorns Public-house.

Parish of Linchmere—The road from the southern boundary of the parish of Shottermill to the Liphook and Haslemere Road by the ponds to the north of Springhead Farm.

Parish of Haslemere—Clay Hill from the boundary of the parish of Shottermill to Station Road Station Road East Street from Station Road to the house known as Lone Side High Street from East Street to the cross roads near Haslemere Rectory Kings Road from Station Road to the gasworks.

PART II.

Part of street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of three years after the commencement of this Order.

Parish of Bramshott—The London and Portsmouth road from the Seven Thorns Public-house to the Anchor Hotel Liphook.

HOLSWORTHY ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Holsworthy. Electric Lighting Acts 1882 and 1888 to Christy Brothers and Company Limited in respect of the Urban District of Holsworthy in the County of Devon.

1. This Order may be cited as the Holsworthy Electric Lighting Short title. Order 1909.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.

Holsworthy.
Incorporation of
Electric Lighting
(Clauses) Act
1899.

Undertakers.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Christy Brothers and Company Limited of Chelmsford Essex.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to
break up
streets.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets which are mentioned in the Second Schedule to this Order.

Compulsory
works.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

As to con-
struction of
generating
station.

7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto This section shall not apply to any station for transforming converting or distributing electrical energy.

Maximum
prices.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Deposit.

9. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

10.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole eighteen months as the Board of Trade allow after the commencement of this Order the Undertakers transfer the undertaking to a limited company registered under the Companies (Consolidation) Act 1908 formed for the purpose and approved by the Board of Trade.

A.D. 1909.
Holsworthy.
Powers not to be exercised unless undertaking is transferred to a registered company.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

11.—(1) The urban district council of Holsworthy being the local authority for the district may by twelve months' notice in writing expiring at or at any time after the termination of twenty-five years from the commencement of this Order require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes of the undertaking.

Power of purchase by urban district council of Holsworthy.

(2) The price to be paid upon any such transfer shall be a sum equal to the fair market value of the undertaking purchased as a going concern that sum to be determined in default of agreement by arbitration.

(3) The Board of Trade may determine any question which arises in reference to the purchase which is not to be determined by arbitration and in default of agreement as to the date on which the transfer is to take effect may fix that date.

(4) From the date on which the purchase takes effect the undertaking (including all such lands buildings works materials and plant as aforesaid) shall vest in the local authority freed from all debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order shall

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. cease and determine and shall vest in the said local authority who
Holsworthy. shall subject to the provisions of this Order become the Undertakers
for the purposes of this Order.

(5) The power of purchase given by this Order shall be in addition
to and not in derogation of the power of the local authority to purchase
under section 2 of the Electric Lighting Act 1888.

Commence-
ment of
Order.

12. This Order shall come into force upon the day when the Act
confirming this Order is passed and that day for the purposes of the
Electric Lighting (Clauses) Act 1899 shall be the commencement of
this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Holsworthy as constituted at the commencement
of this Order.

SECOND SCHEDULE.

*List of streets not repairable by the local authority which may be broken
up by the Undertakers in pursuance of the special powers granted
by this Order.*

Viaduct View Viaduct View Road Brighton Terrace Station Road
Slaughterhouse Road Croft Road Penrose's Ope Penrose's Gardens Fry
Street Gimlets Court Little Holsworthy and the approach thereto Corner
Court and New Inn Garden.

THIRD SCHEDULE.

*List of streets and parts of streets throughout which the Undertakers are
to lay down suitable and sufficient distributing mains for the pur-
poses of general supply within a period of two years after the
commencement of this Order.*

Fore Street North Road from Fore Street to the corner of Sander's
Lane The Square Victoria Square Bodmin Street from Stanhope Square
to the corner of Croft Road Stanhope Square and Chapel Street from
Stanhope Square to the school.

FOURTH SCHEDULE.

A.D. 1909.

Holsworthy.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt per hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

- (a) For power and heating purposes for each unit fourpence; and
- (b) For all other purposes for any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

SOUTHAMPTON ELECTRIC LIGHTING (EXTENSION).

Provisional Order granted by the Board of Trade under the Southampton. Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Southampton in respect of the parishes of South Stoneham and North Stoneham in the Rural District of South Stoneham in the County of Southampton.

1. This Order may be cited as the Southampton Electric Lighting (Extension) Order 1909 and this Order and the Southampton Electric Lighting Orders 1895 1897 and 1908 (hereinafter called “the principal Orders”) may be cited together as the Southampton Electric Lighting Orders 1895 to 1909.

Short and collective titles.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are not incorporated with this Order.

Exception of Electric Lighting (Clauses) Act 1899.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.
Southampton.
Added area of
supply.

3. There shall be added to the area of supply for the purposes of the principal Orders as amended by this Order the area (in this Order called "the added area") which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade and the principal Orders shall be read and construed accordingly Provided that in the application of the provisions of those Orders to the added area the expression "the commencement of this Order" shall mean the day on which the Act confirming this Order is passed.

Power to
break up
streets.

4. There shall be added to the list of streets railways and tramways mentioned in the Second Schedule to the Southampton Electric Lighting Order 1895 (being streets not repairable by the local authority and railways and tramways which the Undertakers are specially authorised to break up) the streets which are mentioned in the Second Schedule to this Order.

Compulsory
works.

5.—(1) The Undertakers shall within a period of two years after the commencement of this Order lay down suitable and sufficient distributing mains throughout the street and part of a street specified in that behalf in the Third Schedule to this Order and shall thereafter maintain the same.

(2) If the Undertakers make default in laying down any distributing main in accordance with the provisions of this section the Board of Trade may either revoke the Order as to the whole or any part of the added area or if the Undertakers so desire suffer it to remain in force as to that area or part thereof subject to such conditions as they think fit to impose and any conditions so imposed shall be binding on and observed by the Undertakers and shall be of the like force and effect in every respect as though they were contained in this Order Provided that the Board of Trade shall not revoke this Order as to part only of the added area where the Undertakers make a representation that they desire to be relieved of their liabilities as respects the rest of the added area and in that case the Board of Trade shall not under this section revoke this Order otherwise than as to the whole of the added area.

As to con-
struction of
generating
station.

6. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station on any land acquired by them after the thirty-first day of March one thousand nine hundred and nine unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto This section shall not apply to any station for transforming converting or distributing electrical energy. A.D. 1909.
Southampton.

7.—(1) The South Stoneham Rural District Council may at any time after the commencement of this Order by two years' notice require the Undertakers to sell and on the expiration of such notice the Undertakers shall sell to the said council the part of their undertaking which is within the added area at a price to be ascertained upon the basis and in the manner prescribed by section 2 of the Electric Lighting Act 1888 and the provisions of that section as to the powers of the Board of Trade and as to the vesting of the lands buildings works and materials purchased and of the powers of the Undertakers in the said council shall apply in respect of the transfer of the said part of the undertaking to the said council. Power to ' South Stoneham Rural District Council to purchase part of undertaking.

(2) The special power to purchase given by this section shall be in addition to and not in derogation of the power of the council as the local authority to purchase under section 2 of the Electric Lighting Act 1888.

8. This Order shall come into force upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order." Commencement of Order.

SCHEDULES.

THE FIRST SCHEDULE.

ADDED AREA OF SUPPLY.

The parishes of South Stoneham and North Stoneham in the rural district of South Stoneham as constituted at the commencement of this Order.

THE SECOND SCHEDULE.

List of streets not repairable by the local authority which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by the Southampton Electric Lighting Order 1895.

Road leading from Burgess Street to Glen Eyre Bassett and The Crescent Bassett.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.

THE THIRD SCHEDULE.

Southampton.

Street and part of street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Road (unnamed) leading from Burgess Street (opposite the north-east corner of the Southampton Common) to Glen Eyre Bassett and The Crescent Bassett from Burgess Street to the main highway between Southampton and Winchester.

STAINES ELECTRIC LIGHTING.

Staines. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Francis Stirling Powell trading as the Egham Electric Lighting Syndicate in respect of the Urban District of Staines in the County of Middlesex.

Short title. 1. This Order may be cited as the Staines Electric Lighting Order 1909.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertaker. 3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is Francis Stirling Powell trading as the Egham Electric Lighting Syndicate whose office is at The Elms Tite Hill Egham.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to break up streets. 5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory works. 6. The streets and part of a street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. A.D. 1909.
Staines.

7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto. This section shall not apply to any station for transforming converting or distributing electrical energy. As to construction of generating station.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Undertakers a supply of electrical energy to premises having a separate supply unless he has agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers to meet the possible maximum demand for those premises. The sum to be so paid shall be determined in default of agreement by arbitration. Supply of electricity where consumer has separate supply.

10. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred pounds. Deposit.

11. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises. Power to refuse to supply electrical energy in certain cases.

12. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or Consumers to give notice to Undertakers before removing.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. the date from which any subsequent occupier of such premises shall
Staines. require the Undertakers to supply electrical energy to such premises
whichever shall first occur Notice of this provision shall be endorsed
upon every demand note for charges for electrical energy.

Powers not to
be exercised
unless under-
taking is
transferred to
a registered
company.

13.—(1) The powers given by this Order shall not be exercised
unless within six months or such extended period not exceeding in the
whole nine months as the Board of Trade may allow after the passing
of the Act confirming this Order the Undertaker by deed to be
approved by the Board of Trade transfer the undertaking to the Egham
and District Electric Light Company Limited a company registered
under the Companies Acts 1862 to 1907 and whose registered office is
at The Elms Egham.

(2) Within that period the Undertaker may transfer and the said
company may take a transfer of the undertaking with the consent of
and on such terms and conditions as may be approved by the Board
of Trade.

(3) On such transfer the rights powers authorities obligations and
liabilities of the Undertaker shall be transferred to and may be exer-
cised by and shall attach to the said company who shall subject to
the provisions of this Order become the Undertakers for the purposes
of this Order.

(4) If the transfer directed by this Order has not been made before
the expiration of the period limited in that behalf in this section the
Board of Trade may revoke this Order upon the expiration of that
period.

For protec-
tion of Con-
servators of
River
Thames.

14. Nothing in this Order shall authorise the Undertakers to
interfere in any manner with the bed soil banks towpaths or shores of
the River Thames or the navigation thereof or affect in any manner the
rights powers or privileges of the Conservators of the River Thames.

Commence-
ment of
Order.

15. Save as in this Order expressly provided this Order shall
come into force upon the day when the transfer to the said company
takes effect and that day for the purposes of the Electric Lighting
(Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Staines as constituted at the
commencement of this Order.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

SECOND SCHEDULE.

A.D. 1909.

Staines.

List of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Wheatsheaf and Pigeon Lane Penton Hook Road Penton Road Penton Avenue Thames Side Riverside Road Langley Road Green Lane or Commercial Road Greenlands Road Rookery Road Glebe Road side road unnamed between Glebe and Rookery Roads Vicarage Road Fairfield Terrace roads on Penton Hall Estate roads on Worple Road Estate roads on Laleham Road Estate Ruskin Road Norris Road roads on Chabon Estate road unnamed past St. Peter's Church Packhorse Path Staines Bridge and approaches both sides of bridge (county bridge) Crooked Billet Bridge London Road (county bridge).

THIRD SCHEDULE.

List of streets and part of a street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

High Street Clarence Street Thames Street Laleham Road from Thames Street to Gresham Road and Gresham Road.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. schedule the amount of energy supplied to him being taken to be the
Staines. product of that electrical quantity and the declared pressure at the
consumer's terminals that is to say such a constant pressure at those
terminals as may be declared by the Undertakers under the Board of
trade regulations.

STOURBRIDGE ELECTRIC LIGHTING.

Stourbridge. *Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to the Urban District
Council of Stourbridge in respect of the Urban District of
Stourbridge in the County of Worcester.*

Short title. 1. This Order may be cited as the Stourbridge Electric Lighting
Order 1909.

Incorporation
of Electric
Lighting
(Clauses) Act
1899. 2. The provisions contained in the schedule to the Electric Lighting
(Clauses) Act 1899 (with the exception of sections 83 and 84 of that
schedule) are incorporated with and form part of this Order. Provided
that nothing in section 3 of the said schedule shall be construed as
preventing the Undertakers from taking a supply of energy in bulk
from any company body or person authorised by Parliament to give
such supply.

Undertakers. 3. The Undertakers for the purposes of this Order and within
the meaning of section 2 of the schedule to the Electric Lighting
(Clauses) Act 1899 are the urban district council of Stourbridge.

Area of
supply. 4. The area of supply for the purposes of this Order and within
the meaning of section 4 of the schedule to the Electric Lighting
(Clauses) Act 1899 shall be the area which is described in the First
Schedule to this Order and is more particularly delineated on the map
deposited together with this Order at the Board of Trade by the
Undertakers and signed by an assistant secretary to the Board of
Trade.

Power to
break up
streets &c. 5. Subject to the provisions incorporated with this Order the
Undertakers are specially authorised by this Order to break up the
streets not repairable by the local authority which are mentioned in
the Second Schedule to this Order and the railways and tramways
which are also mentioned in that schedule.

Compulsory
works. 6.—(1) The streets throughout which the Undertakers are to lay
down suitable and sufficient distributing mains for the purposes of
general supply within a period of two years after the commencement
of this Order as mentioned in section 21 of the schedule to the
Electric Lighting (Clauses) Act 1899 are those mentioned in Part I. of
the Third Schedule to this Order.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

(2) If the undertaking is in pursuance of the provision in that behalf hereinafter contained transferred by the Undertakers to the company known as the Midland Electric Corporation for Power Distribution Limited that company shall in addition to the obligation imposed upon the Undertakers by this section forthwith lay down similar mains in the street and parts of streets mentioned in Part II. of the said schedule if called upon to do so by the local authority within a period of seven years after the commencement of this Order.

A.D. 1909.
Stourbridge.

7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto This section shall not apply to any station for transforming converting or distributing electrical energy.

As to construction of generating station.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order:

Maximum prices.

Provided that so long as the said company are the Undertakers for the purposes of this Order it shall not be entitled to charge higher prices than those for the time being charged by it in other districts supplied by it with electrical energy.

9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand or continue to receive from the Undertakers a supply of energy to premises having a separate supply unless he has previously agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers in order to meet the possible maximum demand of such person The sum to be so paid shall be determined in default of agreement by arbitration.

As to supply of energy where consumer has separate supply.

10. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Power to refuse to supply electrical energy in certain cases.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.
Stourbridge.
Consumers to
give notice to
Undertakers
before re-
moving.

11. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur. Notice of this provision shall be endorsed on every demand note for charges for electrical energy.

Power to
transfer &c.

12.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole fifteen months as the Board of Trade allow after the passing of the Act confirming this Order the Undertakers transfer the undertaking to the said company which is registered under the Companies Acts 1862 to 1907 and has its registered office at 21 Waterloo Street in the city of Birmingham.

(2) Within that period the Undertakers may transfer and the said company may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect to the undertaking shall be transferred to and may be exercised by and shall attach to the said company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

Provision for re-
peal of Stourbridge
Electric Lighting
Order 1899.

13. Upon the transfer of the undertaking to the said company the Stourbridge Electric Lighting Order 1899 shall be repealed.

Commence-
ment of
Order.

14. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Stourbridge as constituted at the commencement of this Order.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

SECOND SCHEDULE.

A.D. 1909.

Stourbridge.

List of streets not repairable by the local authority and railways and tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS :—

Junction Road Valley Road an unnamed road leading from Love Lane towards Oakleigh and the following footpaths namely from Wollaston Road Stourbridge across Forge Hill to High Street Wollaston from Forge Hill to Enville Street from Bowling Green Road at Washing Pool to the cemetery from Hanbury Hill to Heath Lane from Vauxhall to Bedcote from Parkfield to Junction Road from Horse and Groom Passage High Street to Parkfield from High Street to Angel Street by Coach and Horses Passage from Norton Road across Glebe Farm to Old Dudley and Kidderminster main road from Glebe Farm to Glebe Lane from Church Road to Whitehall from Church Road to the Ham and from Chawn Hill by Grange Fields to Dudley and Pedmore main road.

(b) RAILWAYS :—

The level crossings of the Great Western Railway Company at Parkfield Road and Hungary Hill Road Stourbridge the light railways of the Dudley Stourbridge and District Electric Traction Company Limited so far as they pass across or along Foster Street Birmingham Street Enville Street High Street and Hagley Road Stourbridge and Bridgnorth Road and High Street Wollaston on the level.

(c) TRAMWAYS :—

The tramways of the Dudley Stourbridge and District Electric Traction Company Limited at High Street Stourbridge.

THIRD SCHEDULE.

PART I.

List of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Coventry Street High Street Market Street New Road.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909.

PART II.

Stourbridge. Street and parts of streets throughout which the Midland Electric Corporation for Power Distribution Limited if the undertaking is transferred to it is to lay down suitable and sufficient distributing mains for the purposes of general supply on the request of the local authority made within a period of seven years after the commencement of this Order.

Worcester Street South Road from the Heath to Glebe Lane
Hagley Road from New Road to Heath Lane Church Street from
High Street to Red Hill.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

TURTON ELECTRIC LIGHTING.

Turton. Provisional Order granted by the Board of Trade under the *Electric Lighting Acts 1882 and 1888 to the Urban District Council of Turton in respect of the Urban District of Turton in the County Palatine of Lancaster.*

Short title. 1. This Order may be cited as the Turton Electric Lighting Order 1909.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Provided that nothing contained in section 3 of the said schedule shall be construed as preventing the Undertakers from taking a supply of energy in bulk from any company body or person authorised by Parliament to give such a supply.

A.D. 1909.
Turton.
Incorporation
of Electric
Lighting
(Clauses) Act
1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the urban district council of Turton.

Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Area of
supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Power to
break up
streets.

6. The street and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7. It shall not be lawful for the Undertakers except with the consent of the Board of Trade to construct any generating station unless the construction is authorised and the land is specified in a special Act or Provisional Order and the Board of Trade shall not in any case give such consent until notice has been given by advertisement or otherwise as the Board of Trade may direct to the local authority of the district in which the land is situate and to owners and lessees of land situate within three hundred yards of the land upon which the generating station is to be constructed and an opportunity has been given to such local authority owners and lessees of stating any objections they may have thereto. This section shall not apply to any station for transforming converting or distributing electrical energy.

As to con-
struction of
generating
station.

8. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
prices.

9. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand or continue

As to supply
of energy.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. *Turton.* to receive from the Undertakers a supply of energy to premises having a separate supply unless he has previously agreed to pay to the Undertakers such minimum annual sum as will give to the Undertakers a reasonable return on the capital expenditure and will cover other standing charges incurred by the Undertakers in order to meet the possible maximum demand of such person. The sum to be so paid shall be determined in default of agreement by arbitration.

Power to re-
fuse to supply
electrical
energy in cer-
tain cases. 10. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Consumers to
give notice to
Undertakers
before re-
moving. 11. Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur. Notice of this provision shall be endorsed upon every demand note for charges for electrical energy.

Commence-
ment of
Order. 12. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the urban district of Turton as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Windy Harbour Lane and the private road through Knowles' Estate to Darwen Road.

[9 EDW. 7.] *Electric Lighting Orders Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

THIRD SCHEDULE.

A.D. 1909.

Turton.

Street and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Darwen Road from the railway arch at Bromley Cross to the private road through Knowles' Estate Hough Lane and Chapeltown Road from Darwen Road to Windy Harbour Lane.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

WALTON-ON-THE-NAZE ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Coast Development Corporation Limited in respect of the Urban District of Walton-on-the-Naze in the County of Essex.

Walton-on-the-Naze.

1. This Order may be cited as the Walton-on-the-Naze Electric Short title. Lighting Order 1909.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sub-sections (2) and (4) of section 5 and sections 83 and 84 of that schedule) are incorporated

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

[Ch. cxli.] *Electric Lighting Orders Confirmation* [9 EDW. 7.]
(No. 1) Act, 1909.

A.D. 1909. with and form part of this Order. Provided that nothing contained
Walton-on- in section 3 of the said schedule shall be construed as preventing the
the-Naze. Undertakers from taking a supply of energy in bulk from any company
body or person authorised by Parliament to give such a supply.
Provided also that nothing contained in section 4 of the said schedule
shall for a period of two years from the commencement of this Order
render the Undertakers liable to any action or other proceeding at law
in respect of the supply of energy or the erection or laying down of
electric lines or works beyond the area of supply which but for this
Order they might have given erected or laid down. Provided further
that for the period of seven years mentioned in sub-section (2) of
section 32 of the said schedule there shall be substituted the period
of five years.

Undertakers. 3. The Undertakers for the purposes of this Order and within
the meaning of section 2 of the schedule to the Electric Lighting
(Clauses) Act 1899 are the Coast Development Corporation Limited
being a company registered under the Companies Acts 1862 to 1900
with limited liability whose registered office is situate at Belle House
Fish Street Hill in the City of London.

Area of supply. 4. The area of supply for the purposes of this Order and within
the meaning of section 4 of the schedule to the Electric Lighting
(Clauses) Act 1899 shall be the area which is described in the First
Schedule to this Order and is more particularly delineated on the map
deposited together with this Order at the Board of Trade by the Under-
takers and signed by an assistant secretary to the Board of Trade.

Power to break up streets. 5. Subject to the provisions incorporated with this Order the
Undertakers are specially authorised by this Order to break up the
streets not repairable by the local authority which are mentioned in
the Second Schedule to this Order.

As to construction of generating station. 6. It shall not be lawful for the Undertakers except with the
consent of the Board of Trade to construct any generating station for
the purposes of the undertaking authorised by this Order on any land
acquired by them after the thirty-first day of March one thousand
nine hundred and nine unless the construction is authorised and the
land is specified in a special Act or Provisional Order and the Board
of Trade shall not in any case give such consent until notice has been
given by advertisement or otherwise as the Board of Trade may direct
to the local authority of the district in which the land is situate and
to owners and lessees of land situate within three hundred yards of
the land upon which the generating station is to be constructed and
an opportunity has been given to such local authority owners and
lessees of stating any objections they may have thereto. This section
shall not apply to any station for transforming converting or distributing
electrical energy.

[9 EDW. 7.] *Electric Lighting Order Confirmation* [Ch. cxli.]
(No. 1) Act, 1909.

A.D. 1909.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Walton-on-the-Naze.
Maximum prices.

8. Notwithstanding anything in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand or to continue to receive from the Undertakers a supply of electrical energy to premises which have also either electrical energy produced on such premises or a supply from any other source unless such person has agreed with the Undertakers to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises. The sum to be so paid shall be determined in default of agreement by arbitration.

Supply of electricity where consumer has separate supply

9. The Undertakers may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Undertakers in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Refuse to supply electrical energy in certain cases.

10.—(1) Twenty-four hours' notice in writing shall be given to the Undertakers by every consumer before he quits any premises supplied with electrical energy by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Undertakers to supply electrical energy to such premises whichever shall first occur.

Consumers to give notice to Undertakers before removing.

(2) Notice of this provision shall be endorsed upon every demand note for charges for electrical energy.

11.—(1) Unless and except in so far as the Undertakers obtain the consent of the Board of Trade to retain the electric lines placed by them above ground within the area of supply before the commencement of this Order the Undertakers shall within five years after the commencement of this Order remove every such line (not being a service line necessarily so placed).

Removal of overhead wires.

(2) If the Undertakers shall fail to remove any such line as aforesaid they shall on complaint made by the local authority to a court of summary jurisdiction be liable to a penalty not exceeding ten pounds and to a further daily penalty not exceeding five pounds until such line is removed and such court may in addition to inflicting the said penalties make an Order authorising the local authority to remove the line which is the subject of such complaint.

A.D. 1909.
Walton-on-the-Naze.
 Power of purchase by *Walton-on-the-Naze Urban District Council.*

12. —(1) The *Walton-on-the-Naze Urban District Council* (hereinafter called "the council") may at any time after the expiration of fourteen years from the commencement of this Order by twelve months' previous notice require the Undertakers to sell and upon the expiration of such notice the Undertakers shall sell to the council their undertaking (including all lands, buildings, works, materials and plant of the Undertakers suitable to and used by them for the purposes of their undertaking within the district of the council) upon payment by the council to the Undertakers of a sum equal to the fair market value of the undertaking as a going concern on the basis of a compulsory purchase.

(2) If any question arises as to the price to be paid on any such purchase, the aforesaid question shall be determined by arbitration.

(3) The Board of Trade may determine any other question which may arise in relation to such purchase and may fix the date from which the purchase is to take effect.

(4) On the date on which the purchase takes effect the undertaking purchased including the said lands, buildings, works, materials and plant shall vest in the council freed from any debts, mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity under this Order within the said district shall absolutely cease and determine and shall vest in the council.

(5) Nothing in this section shall affect the power of the council as the local authority to purchase under section 2 of the *Electric Lighting Act 1888*.

Commencement of Order.

13. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the *Electric Lighting (Clauses) Act 1899* shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of *Walton-on-the-Naze* in the county of *Essex* as constituted at the commencement of this Order.